

**IN THE UNITED STATES DISTRICT COURT IN THE  
MIDDLE DISTRICT OF FLORIDA  
Tampa Division**

DAVIS MATTHEW,  
Plaintiff,

V.

Defendant.

SHERIFF CHRIS NOCCO, in his  
official capacity as Sheriff of Pasco  
County Florida,  
Case No.

Complaint (42 U.S.C. § 1983)

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**AMENDED COMPLAINT FOR VIOLATION OF CIVIL RIGHTS  
UNDER 42 U.S.C. § 1983**

**I. INTRODUCTION**

Plaintiff, Matthew Aaron Davis, Pro Se, hereby files this Complaint against the Pasco County Sheriff's Department and elected official in his official capacity Sheriff Chris Nocco ("Defendant") for violations of Plaintiff's Fourth and Fourteenth Constitutional rights under 42 U.S.C. § 1983, and demands a trial by jury on all matters triable. The Plaintiff alleges as follows:

**II. JURISDICTION AND VENUE**

1. This Court has jurisdiction under 28 U.S.C. § 1331 because this action arises under the deprivation of rights of the United States, specifically 42 U.S.C. § 1983, as applicable.
2. This Court has jurisdiction under 28 U.S.C. § 1343 for civil rights violations.
3. Venue is proper in the United States District Court for the Middle District of Florida, Tampa Division, under 28 U.S.C. § 1391(b) because the events giving rise to this claim occurred in Pasco County, Florida, which falls within this Court's jurisdiction.

### **III. PARTIES**

4. Plaintiff, Matthew Aaron Davis, at all times relevant to this Complaint, was a resident of Pasco County, Zephyrhills, Florida and former Public Works First Responder (12403) for Pasco County, Florida.
5. Defendant, Sheriff Chris Nocco, in his official status as the elected Sheriff of Pasco County Florida and is responsible for the policies, training, and conduct of the Pasco County Sheriff's Office and its deputies.

### **IV. FACTUAL ALLEGATION**

6. On December 10, 2020, Plaintiff was arrested on charges of domestic battery as documented in case number 512020MM004755MMAXES in the Sixth Judicial Circuit Court in and of Pasco County Florida. He was lawfully present at his home at 6819 23rd St. Zephyrhills, FL. 33542.

7. Plaintiffs' children, whom he had sole custody of, were watched by the maternal great grandparents at this time with no legal standing of custody.
8. Plaintiff was released on bond on December 12, 2020.
9. Plaintiff went to retrieve his children when the Pasco County Sheriff was dispatched to the great grandparents residence. There the Sheriff officers under color of law, unlawfully enforced the separation of the children and their father, the Plaintiff.
10. On or about December 28, 2020 Pasco County Sheriff took the children who still reside with their maternal great grandparents into the custody of the state without court order stating domestic violence as being exigent circumstances.
11. On February 11, 2021, all criminal charges were officially dropped. As the State Attorney's Office declined to pursue the domestic battery charges, and “no information” was filed in case number 512020MM004755MMAXES with the Sixth Judicial Circuit Court in and of Pasco County Florida.
12. The Pasco County Sheriff Department, then and now continues to unlawfully enforce the separation of the Plaintiff and his children.
13. Plaintiff was placed under a Florida State Attorney investigation on March 22, 2021. Then incarcerated from July 30, 2022 till April 12, 2023 on

unrelated charges. This investigation and time incarcerated should institute "tolling of the statute of limitations" in regards to this complaint.

## **V. CLAIMS FOR RELIEF..**

### **Count I: Violation 42 U.S.C. § 1983 - Fourth Amendment**

14. Plaintiff realizes and incorporates by reference paragraphs 1 through 13 as though fully set forth herein.

15. At all relevant times Defendant acted under color of law. A false arrest occurs when a person is unlawfully restrained against their will without legal justification.

16. The arrest of Plaintiff was without a valid warrant and/or without probable cause, violating Plaintiff's Fourth Amendment rights under the U.S. Constitution and protections under State Law,

17. Since the State Attorney declined to prosecute, this confirms that no legal basis existed for the arrest, further substantiating Plaintiff's claim.

18. As a direct and proximate result of Defendant's unlawful conduct, Plaintiff has suffered and continues to suffer harm, including the loss of familial association, loss of reputation, mental anguish and emotional distress.

19. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

**Count II: Violation 42 U.S.C. § 1983 - Fourteenth Amendments**

20. Plaintiff realleges and incorporates by reference all preceding paragraphs 1 - 13 as if fully set forth herein.

21. At all relevant times, Defendant, acting under color of state law, unlawfully detained and arrested Plaintiff without probable cause, in violation of Plaintiff's Fourteenth Amendment rights under the U.S. Constitution.

22. On or about December 10, 2020, Plaintiff was wrongfully detained by Defendant in Pasco County, Florida, without a valid warrant, lawful justification, or probable cause.

23. Plaintiff was held in custody for two (2) days before being released. The false arrest and imprisonment were intentional, reckless, and/or grossly negligent, directly causing harm to Plaintiff.

24. As a direct and proximate result of Defendant actions, Plaintiff has suffered damages including, but not limited to, emotional distress, reputational harm, financial losses, and legal costs.

25. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

**VI. PRAYER FOR RELIEF**

WHEREFORE, Plaintiff respectfully requests that this Court:

- Find Defendant in violation of the the Plaintiffs Fourth and Fourteenth Amendment.
- Award compensatory damages to Plaintiff for the harm suffered as a result of Defendant's actions in the amount of \$1,000,000.00
- Award punitive damages in the amount of \$1,000,000.00 to Plaintiff to deter Defendant and others from engaging in similar conduct
- Grant Plaintiff's safe passage to his home state of New York.
- Award Plaintiff's reasonable attorneys' fees and costs incurred in bringing this action;
- Grant such other and further relief as the Court deems just and proper.

Respectfully submitted, on this 16th day of May in the year 2025.

/s/ Matthew Aaron Davis

Matthew Aaron Davis  
4538 Charter St.  
Zephyrhills, FL. 33541  
656-212-3599  
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May 16, 2025

**IN THE UNITED STATES FEDERAL COURT IN THE  
MIDDLE DISTRICT OF FLORIDA**

Tampa Division

DAVIS, MATTHEW

Plaintiff,

v

SHERIFF CHRIS NOCCO, in his  
official capacity as Sheriff of Pasco  
County,  
Defendant.

Case No.:

Certificate of Service

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**CERTIFICATE OF SERVICE**

I, Matthew Aaron Davis, hereby certify that on this 16th day of May year 2025, I served a true and correct copy of the following documents:

- Amended Complaint under Title 42 U.S.C. statue 1983.
- Certificate of Service

Additionally, I certify that the aforementioned documents have been electronically filed with the Clerk of Court for the United States District Court, Middle District of Florida, via the Clerk of Court, which will send a notice of electronic filing to all

counsel of record.I declare under penalty of perjury, under the laws of the United States of America, that the foregoing is true and correct.

Respectfully submitted,

/s/ Matthew Aaron Davis

Matthew Aaron Davis

4538 Charter St.

Zephyrhills, FL 33542

Phone: 655-212-3599

Email: DavisMatthewA2024@gmail.com

Date: May 16, 2025